



Appeal Decision

Site visit made on 5 August 2026

by Jane Smith MA MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 27 August 2026

Appeal Ref: 6005325

61 Brackley Square, Woodford Green, Redbridge IG8 7LN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Mrs Anne Hart against the decision of the Council of the London Borough of Redbridge.
 - The application Ref is 3187/25.
 - The development proposed is Subdivision of garden and development of a two-storey detached 3-bedroom dwellinghouse on the land to the rear.
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Decision

1. The appeal is dismissed.

Application for costs

2. An application for costs was made by the appellant against the Council of the London Borough of Redbridge and is the subject of a separate decision.

Preliminary Matters

3. The application was in outline, with details of access only to be considered at this stage. The appearance, layout, scale and landscaping of the development would therefore be for later consideration. The Design and Access Statement (DAS) describes all drawings as being indicative, but those drawings include the proposed access arrangements as described in the DAS. I have treated those aspects of drawings which describe the proposed pedestrian, cycle and vehicular access arrangements as being for detailed consideration, but those aspects which relate to the reserved matters as being indicative.
4. A new National Planning Policy Framework (the Framework 2026) was issued on 17 August 2026. Having regard to the specific issues raised in this appeal, it has not been necessary to seek further representations from the main parties on its contents. However, the Framework 2026 is a material consideration from the date of publication, and I have taken it into account.

Main Issues

5. The main issues are:
 - whether safe, inclusive and accessible access would be provided for the proposed dwelling and its occupiers, and
 - the effect of the proposal on the character and appearance of the area, with reference to the effect on existing tree cover.

Reasons

6. The dwellings in Brackley Square are arranged in short terraces, generally separated by single driveways. The existing dwelling on the appeal site is an end terrace property. Due to its position on an outer corner of the square, it is aligned at an oblique angle to its neighbour, with a relatively narrow gap at the front, opening out towards the rear. Within that space, both the host dwelling and its neighbour have attached garage extensions, built up to the boundary. There are also hardstandings at the front, where cars were parked at the time of my site visit.
7. Behind the host dwelling and its neighbours are long back gardens with increasing levels of tree cover towards the rear boundary. There is currently no external pathway to the rear garden, since the attached garage is built right up to the boundary. At the rear of the dwelling, there are steps down into the garden, which is at a lower level. Beyond the rear garden boundary is a strip of land which includes a footpath linking Goldhaze Close and Finchingfield Avenue. However, there is a continuous boundary wall and no current access to or from the footpath. Although an earlier application proposed access at the rear, in this case the proposed access would be from Brackley Square at the front.

Access arrangements

8. The plans specify that both vehicular and pedestrian access would be provided from Brackley Square, utilising the area that is currently occupied by the attached garage. There would be a pedestrian and cycle access pathway beyond that point, to connect the proposed dwelling to the highway. The principle that vehicular, pedestrian and cycle access to and from the street would be provided within those areas is among the detailed matters before me. While the exact form and layout of the parking spaces indicated on the plans would be a reserved matter, the proposed access arrangements clearly imply that vehicles would be present, and parked, within that general area and there is little flexibility about where they would be positioned.
9. Within the limited space available to the side of the host dwelling, it does not appear feasible to provide a path for pedestrians, clear of the area required for vehicular access. Therefore, all forms of access would take place within the same, physically constrained area. That raises the risk of conflict between those on foot and any vehicles moving in and out of that space. The risk of conflict would be greater than at present, since anyone needing to reach the proposed dwelling would of necessity walk through that area.
10. Since the proposed plot would be set well back at the rear, and it is indicated that a back garden for the host dwelling would be retained, any pedestrian and cycle access route would inevitably be long and narrow. It would also have to accommodate the different ground levels between the front and rear of the site. If parking is provided within that area, as indicated, any vehicles parked at ground level would obstruct access for those arriving and departing on foot. Taking all those features into account, the proposal would not provide well for the accessibility needs of any future occupiers with mobility challenges, using pushchairs, wheeling bicycles to the proposed cycle store or carrying furniture or heavy shopping. Anyone making deliveries would be affected by similar safety and accessibility concerns.

11. In their advice to the Council, the Highways Authority also expressed concerns about access in the event of an emergency. The plans indicate the positions of fire hydrants and where fire appliances could stop in the surrounding streets. However, as is acknowledged in the Fire Statement, there would be no clear, unobstructed route for emergency vehicles within the site. Taking into account the rearward position of the proposed plot, and the lack of any form of access from the footpath at the rear, the evidence before me does not adequately demonstrate that appropriate access would be available for firefighting, evacuation or other emergency events. While some of those details could be resolved at the reserved matters stage and/or through compliance with the Building Regulations, it has not been adequately demonstrated that the access arrangements would, in principle, be safe for future occupiers in the event of an emergency.
12. A refuse storage area is indicated within the proposed plot, but the DAS indicates that refuse collection arrangements would remain as existing. That implies that refuse and recycling bins would need to be dragged a considerable distance to and from Brackley Square. That is a consequence of the proposed access arrangements which would not be conducive to an inclusive development, functioning well over its lifetime. However, since the detailed layout of refuse and recycling facilities would be a reserved matter, it may be that alternative, more suitable arrangements could be secured.
13. For the reasons given above, the proposal would not provide safe, inclusive and accessible access for the proposed dwelling and its occupiers. It would conflict with relevant requirements in Policy LP26 of the Redbridge Local Plan (RLP) which include provision of appropriate facilities for servicing. It would also conflict with the general expectation articulated in that policy that proposals achieve high-quality inclusive design to ensure an accessible environment. Although a separate access would be provided, as required in policy LP7 of the RLP, the lack of compliance with Policy LP26 would bring the proposal into conflict with other aspects of that policy.
14. The safety and accessibility concerns relate to the internal access arrangements, rather than the surrounding streets. Consequently, there is no clear conflict with Policy T2 of the London Plan, which relates to Healthy Streets. Since the level of parking provision and its detailed design would be confirmed at reserved matters stage, there is also no apparent conflict with Policy T6.1 of the London Plan. However, the proposal would conflict with the requirement in Policy D3 of the London Plan that development proposals should amongst other things achieve safe, secure and inclusive environments and facilitate efficient servicing of buildings, and deliveries.
15. In the Framework 2026, the proposal would conflict with relevant principles in Policy DP3. Those include that development proposals should function well over the lifetime of the development and should include transport infrastructure with good connections to the wider settlement. At a site-specific level, the proposal would also be contrary to Framework Policy TR4, which includes that the arrangement of streets and other routes should create places that are safe, inclusive and attractive for all users, minimising scope for conflict between pedestrians, cyclists and vehicles.

Character and appearance

16. The tree cover towards the rear of the appeal site includes a semi-mature Oak identified by both parties as T001. The Arboricultural Impact Assessment (AIA) describes it as having a height of around 25 metres and being in fair overall condition, within Category B (moderate quality). Its exact position is disputed, and the plans in the AIA were not informed by a full topographical survey. Nevertheless, I was readily able to identify the tree in question during my site visit and it is a substantial specimen, the canopy of which currently extends across much of the proposed plot. The AIA furthermore confirms that removal of T001 would be necessary, to allow access for construction and general traffic.
17. From Brackley Square, despite being towards the rear of the site, the canopy of T001 is clearly visible in the gap between the host dwelling and its neighbour. It contributes to a leafy backdrop which complements street trees, grass verges and garden vegetation within the street frontages. As such, it contributes positively to green infrastructure within the otherwise quite built-up street scene.
18. At the rear, T001 is one of several trees and shrubs within the gardens backing onto the footpath between Goldhaze Close and Finchingfield Avenue. As well as contributing to a pleasantly leafy environment alongside the footpath, it is also individually highly prominent. Within Goldhaze Close, it is the largest and most clearly visible tree at the end of one arm of the cul-de-sac, attractively framed between the two adjacent terraces. From that perspective, it makes a highly positive contribution to the character and appearance of the street scene.
19. While the layout and scale of the proposed dwelling are reserved matters, the AIA confirms that T001 would have to be removed. No substantive evidence has been provided of any measures which could safeguard it during the construction process, even if the final layout differed from the indicative drawings. Furthermore, given its height, spread and position, in relation to the relatively limited extent of the appeal site, there is no realistic prospect that its removal could be avoided, regardless of the exact siting and scale of the proposed dwelling.
20. In addition to T001, there is already a well-established belt of smaller garden trees and vegetation along the rear boundary. Any replacement planting secured through the landscaping details would be in the same general area, so it would provide little net benefit and would fall well short of compensating for loss of such a sizable and prominent tree. Therefore, while I acknowledge that replacement planting can in some circumstances be an effective way to compensate for the effect of development on existing tree cover, in the particular circumstances of this case, that approach would not provide adequate compensation or mitigation.
21. A Tree Preservation Order (TPO) was served on T001 just before the application was determined and the Council has advised that it has since been confirmed. That being the case, any future pruning would be subject to control in the interests of visual amenity, as well as having regard to the safety and health of the tree. It is possible that there would be some loss of tree cover in those circumstances, but that would have less impact on the character and appearance of the area than the total loss currently proposed.
22. In conclusion, the proposal would have a significantly harmful effect on the character and appearance of the area, due to the effect on existing tree cover. That would conflict with relevant requirements in Policy LP26 of the RLP which

include that development respects the local character of the area. It would not accord with the criteria in Policy LP38 for retention of existing trees in new development, which include consideration of their contribution to local character and amenity and whether they are subject to a TPO. The proposal would also conflict with Policy G7 of the London Plan, which allows for replacement planting in some circumstances, but also includes that wherever possible, existing trees of value (including Category B trees) should be retained.

23. Policy LP39 of the RLP is less clearly relevant, since that relates to biodiversity considerations, rather than the value of existing trees to the character and visual amenity of the locality. Nevertheless, this aspect of the proposal would be contrary to the development plan when read as a whole. It would also be contrary to the key principles in Policy DP3 of the Framework 2026, which include maintaining and enhancing tree cover.

Other Considerations

24. The Framework 2026 redefines the presumption in favour of sustainable development, which is now set out in Policies S3, S4 and S5. Since the appeal site is within a settlement, Policy S4 is applicable. That states that development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework 2026.
25. In this particular case, due to the Council's housing delivery position, both parties agree that the Framework 2024 would also have required that any harm was weighed against the benefits, applying the tests in paragraph 11d. However, the circumstances in which the benefits of approving development are likely to be substantially outweighed by any adverse effects are now more specifically defined within Policy S4. They include where the development would fail to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances (Policy S4, paragraph 2c).
26. The proposal would deliver one additional dwelling, within an area where the Council has acknowledged an ongoing shortfall in housing delivery. It would bring forward housing on a small site, where development could be delivered quickly, making more effective use of the plot and making a small contribution towards boosting the supply of housing. A three-bedroom dwelling is proposed, which would contribute to a need for family homes. Future occupiers would have access to the services and facilities of the urban area. Notwithstanding the site's relatively low Public Transport Accessibility Level, there is an underground station within realistic walking distance and various other local services and facilities could also be reached by walking or cycling.
27. While landscaping, including the nature of any specific ecological enhancements would be a reserved matter, there is no dispute that biodiversity net gain could be provided in accordance with statutory requirements. That is therefore also a modest benefit of the proposal. However, since the design of the proposed dwelling, compliance with space and accessibility standards, the effect on living conditions for neighbouring occupiers and the detailed parking arrangements would all be considered through the reserved matters, no clear conclusions can be reached on any benefits arising from those aspects of the development.

28. Even if a separate, locked gate is provided, there would be no clear security benefit, given that the rear gardens are already inaccessible from public areas due to the garage extensions and rear boundary treatment.

Planning Balance

29. While there are several positive aspects to the proposal, as outlined above, the overall level of benefit is inherently limited by its very small scale.
30. For reasons previously given, the proposal conflicts with relevant aspects of the principles in Policy DP3, paragraph 2 of the Framework 2026. The evidence before me does not clearly justify departing from those key principles and, in those circumstances, Policy DP3 paragraph 3 states that development proposals should be refused. There would additionally be conflict with Framework Policy TR4.
31. Having had regard to the circumstances listed in Policy S4 paragraph 2 of the Framework 2026, I conclude that the benefits of approving the development would be substantially outweighed by the adverse effects. The proposed development does not, therefore, benefit from the presumption in favour of sustainable development.

Other Matters

32. The third reason for refusal relates to the absence of appropriate mitigation for likely significant effects of the development on the Epping Forest Special Area of Conservation, in combination with other development, linked to increased recreational pressure. A unilateral undertaking (UU) to secure such mitigation was provided with the planning application, but the Council has reported that the financial contributions secured by it were based on out-of-date figures. No alternative or updated planning obligation has been provided with the appeal.
33. Had I been minded to allow the appeal, the effectiveness of the UU, including whether it provides for an appropriate level of mitigation, would have been a factor informing the appropriate assessment required under the Conservation of Habitats and Species Regulations 2017. However, since I am dismissing the appeal for other reasons, there is no need for me to consider the matter any further.

Conclusion

34. The proposal conflicts with the development plan and the other material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

Jane Smith

INSPECTOR